



File No.: EXP202300402

RESOLUTION No.: R/00473/2023

Considering the complaint filed on December 9, 2022, with this Agency by A.A.A. (hereinafter the complainant) against B.B.B. (hereinafter the respondent) for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right of access against the respondent with NIF ***NIF.1, and their request, as stated by the complainant, did not receive the legally established response.

The complainant requests the video surveillance recordings corresponding to October 1, 2022, from 13:45 to 14:04, related to the exit door of their workplace. They provide various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on March 9, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing procedure, so that within ten working days, it could present the allegations it deemed appropriate. This entity summarized its allegations as follows:

It provides the document where the complainant requests the right of access, a complaint sheet dated October 11, 2022, from a customer of the establishment of which the respondent is the owner (a tobacco shop), where it is stated that upon leaving the tobacco shop, the shutter was lowered, and the customer was hit on October 1, 2022.

It also provides a conciliation record resulting from the dismissal that occurs as a consequence of the customer's complaint.

Additionally, it provides, dated October 21, 2022, the dismissal letter that the respondent sends to the complainant.

Regarding the requested recordings, the respondent states that it cannot provide them for two reasons: because they contain data or images of third parties and because the security company that manages the recordings keeps them for 5 days, so they are no longer available.

FOURTH: The allegations presented by the respondent have been examined and are subject to transfer to the complainant, so that, within fifteen working days, they can formulate any allegations they deem appropriate.

Regarding the matter at hand, the right of access, the complainant states that the requested images can be pixelated so that when provided, they do not expose third-party data. And expresses their dissatisfaction regarding the short retention period of the recordings. We note that the complainant addresses many more issues in their allegations, but related to labor matters.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the

free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that it had provided the complainant with the due response,

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in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

Said admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

In the case analyzed here, the claiming party exercised their right of access to recordings from their workplace due to an incident that occurred with a client. The responding party did not provide the images, claiming that they contain data of third parties and that since they are deleted after five days, they were no longer available at the time they were requested.

Once the facts have been presented, it should be noted that this claim is only resolved regarding the requested right of access, and the other issues raised related to the employment relationship they maintain will not be addressed or taken into account as they fall outside the scope of this Agency.

The respondent cannot shield itself from addressing the right concerning the recordings that feature images of third parties, as the claimant has pointed out, these can be pixelated or distorted to protect the privacy of any person appearing in a recording alongside or next to the claimant and who is unrelated to the claim. Therefore, this would not be an excuse for not providing the recording as long as it is available and has not been deleted, as the respondent now claims.

However, what the claimant does not take into account is that what can be requested through this Agency are only data (in this case, security camera recordings) in which the claimant herself appears. That is to say, to resolve this conflict where the claimant herself does not appear in the surveillance recordings, according to what has been conveyed to us in the submitted writings, this is not the way to request them since the right of access is a right intended to facilitate data concerning oneself, a

personal right but not the data of third parties.

Regarding the retention period of the recordings, the claimant herself states that they must be kept for a maximum of 30 days, but the minimum, as the respondent states, is five days, according to the security company that manages it.

Therefore, in light of what has occurred, we have an incomplete response from the respondent throughout the procedure since, despite being unable to provide the recordings due to them being deleted at the time of the request, this does not justify the obligation to address the right and respond to the requester, even to deny it with justification. In all the exchanged documentation, the respondent does not prove having sent a letter to the claimant addressing the right.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the claim that initiated this procedure as the right of access was not carried out properly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. and to urge B.B.B. with NIF ***NIF.1, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right of access or to deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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